

25NNCV08427 25NNCV08427

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-09-17

Motion: MOTION TO COMPEL DEPOSITION OF DEFENDANT MARK HASSAN; REQUEST FOR SANCTIONS

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Case Number: 25NNCV08427 Hearing Date: September 17, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

HAGOP JACK MADATIAN, et al.,

Plaintiff(s),

vs.

MARK

HASSAN, et al.,

Defendant(s).

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CASE NO.: 25NNCV08427

[TENTATIVE]

ORDER RE: MOTION TO COMPEL DEPOSITION OF DEFENDANT MARK HASSAN;
REQUEST FOR SANCTIONS

Dept.

3

8:30

a.m.

September

17, 2026

Plaintiffs Hagop Jack Madatian and
Christineh Boniadyan (collectively, "Plaintiffs") move for an order compelling
defendant Mark Hassan ("Defendant") to appear for deposition. Plaintiffs served
a notice of deposition on March 26, 2026, and subsequently rescheduled the date
of the deposition three times. Finally, the deposition was noticed to take
place on June 24, 2026, but Defendant did not appear. A non-appearance was
taken and this motion was filed on June 25, 2026.

A motion to compel the attendance of a deponent

who failed to attend the deposition as scheduled must be accompanied by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance. (Code Civ. Proc., § 2025.450(b)(2).) No such statement is included in Plaintiffs' counsel's declaration.

Accordingly, the motion is DENIED
without prejudice.

Moving party to give notice.

Dated
this 17th
day of September 2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at ALHDEPT3@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.